

An Act

ENROLLED HOUSE
BILL NO. 4032

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

An Act relating to mining; amending 45 O.S. 2021,
Section 931, which relates to operator's fees;
modifying certain fee; establishing minimum annual
fee amount; providing an effective date; and
declaring an emergency.

SUBJECT: Mining

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 45 O.S. 2021, Section 931, is
amended to read as follows:

Section 931. A. All operators of coal mining operations shall
pay to the Department of Mines a fee of seven and one-half cents
(\$0.075) per ton of coal produced.

B. All operators of noncoal mining operations shall pay to the
Department of Mines a fee of ~~one and one-fourth cents (\$0.0125)~~ one
and one-half cents (\$0.0150) per ton of mineral produced. For the
purposes of this section, "mineral" shall be defined as provided in
paragraph 4 of Section 723 of this title.

C. The fees imposed by this section shall be paid no later than
thirty (30) days after the end of each calendar quarter beginning
the first calendar quarter after June 30, 1982.

D. The Department shall develop and promulgate a report form,
which shall be as similar as possible to the form required of
operators by federal law, and which shall state the amount of coal
or mineral produced during the calendar quarter, the method of coal

or mineral removal, and the type of coal or mineral. The operator shall swear to the accuracy of the report before a notary public, who shall duly notarize the report.

E. All fees collected by the Department of Mines pursuant to this section shall be deposited with the State Treasurer, who shall credit one cent (\$0.01) per ton of fees collected on coal produced on or after July 1, 1988, and one-tenth of one cent (\$0.001) per ton of fees collected on minerals produced on or after July 1, 1988, to the Oklahoma Miner Training Institute Revolving Fund, with the balance of the fees collected to be deposited in the Department of Mines Revolving Fund.

F. Notwithstanding the provisions of subsections A and B of this section, each operator subject to the fees imposed by this section shall pay a minimum annual fee of Five Dollars (\$5.00). If the total amount of fees calculated pursuant to subsections A and B of this section for a calendar year is less than Five Dollars (\$5.00), the operator shall remit an amount sufficient to meet the minimum annual fee requirement.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 14th day of April, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 16th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____